

22STCV12227 22STCV12227

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-01

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Case Number: 22STCV12227 Hearing Date: July 1, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:49 PM on June 30, 2026.

Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1). The Court does not desire oral argument on the motion addressed herein.

As required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 30, 2026.

Notice to Department 734 should be sent by email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Per Rule of Court 3.1308, the Court may not entertain oral argument if notice of intention to appear is not given.

Plaintiff alleges that Defendants obtained possession of Plaintiff's 1996 Porsche 933 Turbo Andial pursuant to a Vehicle Consignment Agreement. Plaintiff alleges that Defendants sold the vehicle to a third party with modifications, but have failed to pay Plaintiff the specified purchase price.

Defendant Canepa Group, Inc. filed a Cross-Complaint alleging that Plaintiff owes sums for goods and services provided to Plaintiff.

Defendants Bruce Canepa and Canepa Group, Inc. move to transfer venue to Santa Cruz County.

TENTATIVE RULING

Defendants Bruce Canepa and Canepa Group, Inc.'s motion to transfer venue to Santa Cruz County is DENIED.

ANALYSIS

Motion To Transfer Venue

Request For Judicial Notice

Defendants request that the Court take judicial notice of the following:

(1). Plaintiff's Complaint, filed in this action on April 11, 2020, attached hereto as Exhibit 1; (2) this Court's November 9, 2023 ruling on Defendant's motion to change venue pursuant to Civ. Proc. Code, §§ 395 and 396b(a); (3) First Amended Cross Complaint of Defendant CANEPA GROUP INC., filed in this action on September 12, 2024; (4) Cross-Defendant's answer to the First Amended Cross-Complaint filed in this action on January 22, 2025,

Requests Nos. 1 – 4 are GRANTED per Evid. Code, § 452(d).

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendants Bruce Canepa and Canepa Group, Inc. move to transfer venue to Santa Cruz County pursuant to Code Civ. Proc. § 397(c) on the following grounds:

a. Numerous potential witnesses, including past employees of Canepa Group Inc, third parties, as well as current employees have relevant, admissible and material information related this action and cross-action. These potential witnesses reside and work in Santa Cruz County, or counties neighboring Santa Cruz, and would be severely inconvenienced if required to testify in Los Angeles County Superior Court.

b. The ends of justice would be promoted by having a trial in a location where the witnesses are located and not inconvenienced by participating and in the location where the underlying contracts and conduct took place. All named defendants, cross complainant, and witnesses reside in Santa Cruz County and Plaintiff does not currently reside in Los Angeles County. Plaintiff's complaint alleges a cause of action for breach of a contract that was to be performed in Santa Cruz County, as well as tort causes of action against the defendant residents of Santa Cruz County; Cross-Complainant's Cross complaint alleges causes of action based in contract that were meant to be performed, and were performed, by cross-complainant in Santa Cruz County

Code Civ. Proc. § 397(c) provides:

The court may, on motion, change the place of trial in the following cases:

...

(c) When the convenience of witnesses and the ends of justice would be promoted by the change.

(Code Civ. Proc. § 397(c).)

A moving party under section 397, subdivision (c) must demonstrate the transfer will promote both the convenience of witnesses and the ends of justice. (Citations omitted.) Generally, the "convenience of the parties is not to be considered upon

a motion for a change of venue." (Citation omitted.) "Before the convenience of witnesses may be considered as a ground for an order granting a change of venue it must be shown that their proposed testimony is admissible, relevant and material to some issue in the case as shown by the record before the court." (Citation omitted.) The declaration or declarations supporting the motion should "set forth the names of the witnesses, the nature of the testimony expected from each, and the reasons why the attendance of each would be inconvenient." (Citation omitted.) The purpose is "so that the court may, from the issues, judge of the materiality of their testimony and afford opposing counsel an opportunity to stipulate to the testimony proposed." (Citation omitted.) "The convenience of witnesses whose testimony will be merely cumulative is entitled to little consideration." (Citation omitted.) The court should also consider reasonable inferences that may be drawn from the information in the supporting materials. (Citations omitted.)

[*837]

. . .

"[T]he code imposes no express time limit within which [a section 397 motion to change venue] must be made. However, it has been stated that such motion must be made within a reasonable time after the answer is filed." (Thompson, supra, 26 Cal.App.3d at p. 306.)

(Rycz v. Superior Court (2022) 81 Cal.App.5th 824, 836-37 [bold emphasis and underlining added].)

In a motion brought under section 397, subdivision 3, "the burden [of proof] rests on the party moving for transfer to establish grounds for change of venue, on the theory the plaintiff lays the venue and it is presumptively correct. [Citations.]" (Citation omitted.) "[I]t is not only necessary that convenience of witnesses be served, but it is equally essential that the ends of justice be promoted. [Citation.]" (Citation omitted.)

While a motion made under this section is addressed to the discretion of the trial court, that discretion is not unfettered. For instance, except under limited circumstances, the court may not consider the convenience of the parties or of their employees in passing upon the motion. (Citations omitted)

There is, however, an exception to the rule prohibiting consideration of convenience to a party when "the serious illness of a party will prevent his traveling to attend the trial in the other county and his testimony is material . . . [Citations.]" (Citations omitted.) Likewise, a limited exception has arisen allowing a court to consider the convenience of witnesses who are employees of a party. That exception obtains when the employees are called as witnesses by the adverse party rather than on behalf of their employer. (Citations omitted.)

(Lieberman v. Superior Court (1987) 194 Cal.App.3d 396, 401-02 [bold emphasis and underlining added].)

Here, Defendants filed their answer to the Complaint on January 4, 2024, while Plaintiff/Cross-Defendant filed his answer to the First Amended Complaint on January 22, 2025. Even measuring from the date the case was at issue as to both operative pleadings, this motion was not filed until February 25, 2026—more than a year after the case was at issue. This is not a "reasonable time after the answer is filed." (Rycz, supra, 81 Cal.App.5th at 837.)

Moreover, the Court does not even see that Defendants filed the Declaration of Bruce Canepa, which purportedly discussed the witnesses who would be inconvenienced. The Canepa Declaration is essential to the inconvenience inquiry because, as discussed above:

[I]t must be shown that [the witnesses'] proposed testimony is admissible, relevant and material to some issue in the case as shown by the record before the court." (Citation omitted.) The declaration or declarations supporting the motion should "set forth the names of the witnesses, the nature of the testimony expected from each, and the reasons why the attendance of

each would be inconvenient.” (Citation omitted.)

(Rycz v. Superior Court (2022) 81 Cal.App.5th 824, 836 [bold emphasis and underlining added].)

In other circumstances, the Court might continue the hearing to allow Defendants to file the Canepa Declaration. However, as noted above, this motion is untimely because it was not brought within a reasonable time after the answer was filed.

As such, the motion to transfer venue is DENIED.